

TERMS OF SERVICE (ToS)

ORGANIZING COMMITTEE OF YOUTH MINING CAMP COMPETITION (YMCC) VII

DEPARTMENT OF MINING ENGINEERING - UNIVERSITAS PEMBANGUNAN NASIONAL "VETERAN" YOGYAKARTA

LEGAL NOTICE AND AGREEMENT

Welcome to the official digital platform of the Youth Mining Camp Competition (YMCC) VII (accessible via ymccvii.com, its subdomains, and integrated web systems, hereinafter referred to as the "Platform").

These Terms of Service (hereinafter referred to as "ToS" or "Agreement") constitute a legally binding, high-level contract between the Organizing Committee of YMCC VII (in strategic partnership with ARC Studio, hereinafter referred to as the "Organizer") and any individual or entity accessing, registering, purchasing, participating, evaluating, or administering within the digital and physical domains of YMCC VII (hereinafter referred to as the "User").

BY CREATING AN ACCOUNT, SUBMITTING REGISTRATION DATA, PURCHASING MERCHANDISE, PARTICIPATING IN COMPETITIONS, EVALUATING AS A JURY, OR ACCESSING ANY PORTION OF THE PLATFORM, YOU UNCONDITIONALLY AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE, YOU MUST IMMEDIATELY CEASE ALL USE OF THE PLATFORM.

SECTION 1: DEFINITIONS AND ROLES OF USERS

To ensure absolute clarity in liability boundaries, Users are classified into the following roles. A User may hold multiple roles simultaneously, and all applicable clauses shall apply cumulatively:

1. **Registered Account Holders ("Registered Users"):** Individuals who establish login credentials on the Platform to access closed portals or transactional interfaces.
2. **Competitors & Applicants ("Participants"):** Individuals, team representatives, or team members registered to compete in any official sub-event of YMCC VII (including, but not limited to, the Intellectual Challenge, Mining Games, MSIC, and Paper Competition).
3. **Models & Talents ("Models"):** Individuals acting as the visual subject for official YMCC VII promotional campaigns, merchandise catalogs, or cinematic teasers.
4. **E-Commerce Buyers ("Buyers"):** Individuals or entities purchasing official merchandise, jackets, vests, or seminar kits via the integrated Merch Shop.
5. **Judges & Evaluators ("Juries"):** Academic or industry experts appointed to evaluate, score, and grade any competition tier of YMCC VII.
6. **Committee Members & Officers ("Committee/Panitia"):** Student officers, managers, heads of department, and directors executing operational, technical, or administrative duties for YMCC VII.
7. **Academic Advisors, Lecturers, & Faculty ("Advisors/Dosen"):** Members of the academic senate, lecturers, and faculty representatives of Universitas Pembangunan Nasional "Veteran" Yogyakarta supervising the event.
8. **Accidental Public & On-Site Attendees ("Public Subjects"):** Visitors, supporters, observers, or

passersby present within the physical filming locations, event venues, or campus premises of YMCC VII.

SECTION 2: THE EXAM ENGINE & ACADEMIC INTEGRITY (FOR PARTICIPANTS)

To preserve strict competitive integrity, the online selection system (specifically for the Intellectual Challenge/IC) operates under the following technical mandates:

1. **Active Telemetry & Proctoring Consent:** During any active examination session in the "Exam Center," the Platform deploys the **Tab Visibility API** and screen-monitoring telemetry. The system automatically logs, timestamps, and records every instance of browser tab-switching, minimized windows, or browser defocusing as a technical anomaly.
2. **Conclusive Evidence of Fraud:** The system-generated activity logs and millisecond timestamps are considered *prima facie* (final, binding, and absolute) evidence of a Participant's browser activity.
3. **Disqualification and Forfeiture:** The Organizer reserves the absolute right to automatically disqualify any Participant or team whose activity logs indicate repeated proctoring violations. Disqualification on grounds of academic fraud is final, non-negotiable, and will result in the immediate forfeiture of all registration fees.
4. **Dual-Layer Verification:** While the Platform logs system anomalies, physical verification (via live camera feeds on Zoom/Google Meet) is managed manually by the proctoring committee. The technical logs shall serve as the primary source of truth.

SECTION 3: E-COMMERCE & SIZING LIABILITY (FOR BUYERS)

All merchandise sales, including the Pre-Order (PO) of YMCC VII Safety Jackets/Wearpacks and Vests, are governed by the following transactional rules:

1. **Sizing Chart Responsibility:** Sizing charts and measurements are provided explicitly on the Platform. The Buyer bears 100% of the responsibility to select the correct size. The Organizer will not accommodate any requests for returns, exchanges, or refunds due to sizing errors made by the Buyer.
2. **Payment Validation & Inventory Lock:** Upon checkout, the system reserves the requested stock for a maximum of 24 hours. If full payment is not verified within this window, the transaction is automatically cancelled, the stock is released, and any partial deposit is forfeited.
3. **Platform and Gateway Fees:** All transactions are processed via secure third-party APIs (Xendit for payment gateways and Biteship/RajaOngkir for shipping calculations). Users agree that any transactional processing fees or dynamic courier costs are automatically calculated and added to the "Platform Fee" paid by the Buyer at checkout.

SECTION 4: AUTOMATIC INTELLECTUAL PROPERTY TRANSFER (FOR COMMITTEE/PANITIA)

To secure the digital and brand equity of YMCC VII against internal disputes, the following copyright clauses apply to all Committee members:

1. **Works Made for Hire (Ciptaan dalam Hubungan Dinas):** Pursuant to **Article 36 of the Indonesian Copyright Law (Undang-Undang No. 28 Tahun 2014 tentang Hak Cipta)**, any and all creative, technical, or administrative works produced by a Committee member during their

tenure—including website source code (Next.js/Firebase), graphic designs, video footage, motion logos, copywriting, and administrative databases—are legally defined as "Works Made for Hire."

2. **Absolute IP Transfer:** All economic rights, copyrights, and exploitation rights of the aforementioned works are automatically, unconditionally, and irrevocably transferred to the Organizer and ARC Studio.
3. **No Revocation Rights:** Committee members, including those who resign, are discharged, or complete their tenure, permanently waive their rights to demand the removal (*take-down*), modification, or deletion of their produced assets, and are not entitled to any royalties or financial compensation for their commercial exploitation.

SECTION 5: INSTITUTIONAL SHIELD & NO-LIABILITY (FOR ADVISORS & UNIVERSITY)

1. **Academic Supervision Only:** Academic Advisors, Lecturers, and the Faculty of Universitas Pembangunan Nasional "Veteran" Yogyakarta provide academic and institutional oversight only.
2. **Complete Indemnification:** Under no circumstances shall the University, the Department of Mining Engineering, or any faculty advisor/lecturer be held personally, civilly, or financially liable for any operational failures, contractual breaches with third-party vendors, safety incidents during field events (GMPC/Mining Camp), or financial deficits incurred by the student organizers of YMCC VII.

SECTION 6: FINALITY OF EVALUATIONS (FOR JURIES & PARTICIPANTS)

1. **Scoring Committal:** Once an appointed Jury member commits scoring metrics and evaluation data into the Web Scoring Center (/admin), the data is structurally locked in the Cloud Database.
2. **Waiver of Challenge:** All Juries and Participants agree that the scoring metrics, evaluation sheets, and final rankings generated by the Web Scoring Center are final, absolute, and legally unchallengeable in any student senate, university forum, or court of law.

SECTION 7: GENERAL PUBLIC CROWD RELEASE (FOR PUBLIC SUBJECTS)

1. **Active Media Zone:** By entering any physical venue, filming location, or campus space where YMCC VII events or promotional shootouts (including Studio Alam Gamplong, Pendopo FTME, Kaliurang Villa, and campus spaces) are actively taking place, Public Subjects acknowledge they are entering an active media documentation zone.
2. **Consent to Background Publication:** Public Subjects grant the Organizer the right to edit, crop, and publish photographs, videos, or audio recordings containing their background presence for after-movies, promotional reels, and newsletter articles without any compensation or notification.

SECTION 8: LEGAL ENGINEERING SHIELDS (UNIVERSAL CLAUSES)

1. **EXCLUSION OF ARTICLE 1266 OF THE INDONESIAN CIVIL CODE:** Both the Organizer and the User explicitly and intentionally waive the application of **Article 1266 of the Indonesian Civil Code (Kitab Undang-Undang Hukum Perdata / KUHPerdata)**. Consequently, any unilateral termination, suspension of account, or revocation of access executed by the Organizer under this Agreement shall be immediately effective without requiring a judicial decree or court intervention.
2. **SEVERABILITY:** If any provision, clause, or paragraph of this Agreement is declared invalid, illegal, or unenforceable by a court of competent jurisdiction (such as PN Sleman), such invalidity

or unenforceability shall not affect the validity, legality, and enforceability of the remaining provisions, which shall remain in full force and effect.

3. **AS-IS AND AS-AVAILABLE PLATFORM WARRANTY:** The digital platform, database systems, and payment integrations are provided "as-is" and "as-available." The Organizer and ARC Studio make no warranties regarding 100% server uptime, zero-latency database syncs, or the absolute prevention of minor API syncing delays.
4. **LIMITATION OF LIABILITY:** To the maximum extent permitted by law, the Organizer, its directors, and ARC Studio shall not be liable for any indirect, incidental, or consequential damages (including transaction failures, courier delivery delays, or temporary system downtime).
5. **GOVERNING LAW AND JURISDICTION:** This Agreement shall be governed by, construed, and enforced in accordance with the laws of the Republic of Indonesia. Any disputes arising from or in connection with these terms that cannot be resolved through amicable mediation within 14 calendar days shall be submitted to the exclusive jurisdiction of the **Sleman District Court (Pengadilan Negeri Sleman)**, Daerah Istimewa Yogyakarta.

End of Legal Document.

Organizing Committee of YMCC VII - Media Department.